

be renewed to *cestui que use*. This may seem hard, that the trustee is the only person of all mankind who might not have the lease, but it is very proper that the rule should be strictly pursued, and not in the least relaxed." And so he decreed the lease to be assigned to the infant.

**3. Rule applicable to tenant for life, &c.**—Upon the same principle, if a person, possessing only a partial interest in a

of; *County v. Herrington*, 50 Ill. 232; *McKissick v. Pickle*, 4 Harris, 140; and the same is true of the purchase at a sale, tainted with fraud; *Kent v. Mahaffey*, 10 Ohio St. 204; *Clapper v. House*, 6 Paige, 149; *Morgan v. Halford*, 1 Sm. & Gif. 101; *Cogswell v. Cogswell*, 2 Edw. Ch. 231.

*Illustrations of constructive trust.*—A. is the equitable owner of land. B., C., and D. agree to purchase for the benefit of A.'s children, B. taking the title, holds in trust for the children; *Wright v. Gay*, 101 Ill. 233; the vendor retained the title to land, but assigned the notes given for the unpaid purchase-money, a trust for the assignee; *Felton v. Smith*, 84 Ind. 485; testator devised land to his wife, remainder to his children, and she turning it into money reinvested it in property which she held in trust for the children; *Clifford v. Farmer*, 79 Ind. 529; the manager of a bank owed it money, he having taken the funds to buy land, which he gave to his wife, she held subject to its payment; *Statesville Bank v. Simonton*, 86 N. C. 187; A. and wife convey to B. for no consideration, it being understood that he will reconvey to the wife, for whom he holds in trust; *Cox v. Arnsmann*, 76 Ind. 210; trustee mingles another's money with his own, and buys land, a trust in the money which follows it; *Houghton v. Davenport*, 74 Me. 590; the mere refusal to perform an agreement is not sufficient; *Tatge v. Tatge*, 34 Minn. 272; though the language in a will makes an absolute gift, yet if other expressions show a qualified gift, a court of equity will look at the intent, and raise a constructive trust; *Lucas v. Lockhart*, 10 Smedes & M. 466; 48 Am. Dec. 760.

A person may become a trustee *ex maleficio*, as where one agrees not to bid against the other at a sale, the purchaser is a trustee *ex maleficio*; *Cowperthwaite v. Carbondale Bank*, 102 Pa. St. 397; *Regan v. Campbell*, 2 Mackey, (D. C.) 28; or where one obtains property by fraud, no fiduciary relations being necessary; *Christy v. Sill*, 95 Pa. St. 380; or where parties fraudulently represented assets of a corporation as belonging to them, and getting a dividend declared, held the assets, which they retained as trustees *ex maleficio* for the *bona fide* stockholders; *Bailey's App.* 96 Pa. St. 253.

*Lapse of time.*—A constructive trust will be barred by long acquiescence; but it is difficult to say as to the length of time; *Kane v. Bloodgood*, 7 Johns. Ch. 93; *Elmendorf v. Taylor*, 10 Wheat. 168; *Miller v. M'Intire*, 6 Pet. 61; *Sherwood v. Sutton*, 5 Mason, 143; *Paschall v. Hinderer*, 28 Ohio St. 568; twenty years has been held sufficient to bar any relief in some cases; *Norris's App.* 71 Pa. St. 124; *Perry v. Craig*, 3 Mo. 360; *Field v. Wilson*, 6 B. Mon. 479; *McDowell v. Goldsmith*, 2 Md. Ch. 370; and so has thirty; *Phillips v. Bellden*, 2 Edw. Ch. 1; *Harrod v. Fountleroy*, 3 J. J. Marsh. 548; and thirty-eight; *Powell v. Murray*, 10 Paige, 256; and forty-six; *Maxwell v. Kennedy*, 8 How. 210; and fifty; *Anderson v. Burwell*, 6 Gratt. 405; and twenty-seven; *Hayes v. Goode*, 7 Leigh, 486; and seventeen; *Hite v. Hite*, 1 B. Mon. 177. In other cases relief was not barred by a delay of twelve years; *Newman v. Early*, 3 Tenn. Ch. 714; *Butler v. Haskell*, 4 Des. 651; of eleven; *Rhinlander v. Barrow*,